

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK-----X
DIANE C. DESOUSA and
DIANE C. DESOUSA AS THE EXECUTOR OF THE
ESTATE OF THOMAS E. DESOUSA,

Index No.600371/2021

Plaintiffs,

**AFFIRMATION IN
OPPOSITION**

-against-

Motion Sequence #3

RICHARD A. CALVAGNO II and
PATRICK J. KARCHER,Justice Assigned:
Hon. Frank TinariDefendants.
-----X

1. John N. Cuomo, an attorney duly licensed to practice law in the State of New York, affirms under penalties of perjury as follows:

2. I am the attorney for Diane C. DeSousa (“Mrs. DeSousa”) and Diane C. DeSousa as the Executor of the Estate of Thomas E. DeSousa (“Mr. DeSousa”) (both parties are collectively referred to herein as “Plaintiffs”) in the above-entitled action.

3. As such I am fully familiar with the facts and circumstances of the above captioned case, and I make the following statements based upon my personal knowledge, information, and belief.

4. I submit this Affirmation in Opposition to defendant Patrick J. Karcher’s (“Karcher”) motion for summary judgment pursuant to CPLR §3212(b) dismissing Plaintiffs’ Complaint in its entirety.

5. Plaintiffs’ Complaint sets forth a nuisance action involving the premises known as 320 Grand Central Avenue, Amityville, New York 11701 (the “Premises”) (see, [NYSCEF#2](#)).¹

¹ See CPLR§ 2214(c).

Specifically, Plaintiffs have alleged and shown that defendant Richard A. Calvagno II (1) tortiously operates and uses his high-powered Dodge Charger Hellcat by, among other things, remotely starting, idling, and revving the vehicle in the driveway at the Premises; (2) unlawfully engages in restricted commercial activity at the Premises, including boat slip rentals and catering; and (3) unlawfully allows trash and debris to collect in front of the Premises, thereby causing a rat infestation at Plaintiffs' property.

6. Karcher asserts that he is entitled to judgment as a matter of law because each of Plaintiffs' cause of actions relates to conduct committed by defendant Richard A. Calvagno II ("Calvagno") at the Premises. However, Karcher is a co-owner of the subject property and therefore has an ownership interest in the premises from which the alleged nuisance arises. As an owner of the property, he is a necessary party to any action seeking to abate or restrain a nuisance occurring at the premises.

7. Non-joinder of a party who should be joined under CPLR § 1001 is a ground for dismissal of an action without prejudice (see CPLR § 1003). Under CPLR §1001(a), a necessary party is one whose non-joinder will jeopardize the outcome of the action in either of two ways: (1) "complete relief" cannot be accorded the existing parties to the action; or (2) the absentee might be "inequitably affected" by the judgment. If a person's absence would lead to either result, the statute declares the person to be a "party who should be joined."

8. Courts have repeatedly held that those owning or holding interests in real property are necessary parties in nuisance actions affecting the property. *Stanley v. Amalithone Realty, Inc.*, 31 Misc. 3d 995, 998 (Sup. Ct. NY County 2011); see, *Hitchcock v. Boyack*, 277 A.D.2d 557 [3d Dep't 2000]; see also, *Hutchins v. Smith*, 1872 WL 9619 [N.Y. Sup. Ct. 1872] [holding a nuisance "action must be against the owners in fee"]).

9. Here, there is no dispute Karcher is a joint owner of the Premises. Suffolk County land records show that Calvagno and Karcher are joint owners of the Premises by way of a deed from Jeffrey and Tara Wheeler which was recorded in the office of the Suffolk County Clerk in Liber D00012999 at Page 257 on February 2, 2019. Karcher also does not deny he is a co-owner of the Premises and in fact readily admits that “[i]n or about January 2017, [he] co-signed Calvagno’s mortgage to assist his purchase of the [Premises]” (see, [Karcher Affidavit; NYSCEF#151](#)). As a co-owner of the Premises, Karcher possesses a legal ownership interest in the property from which the alleged nuisance conditions arise. In addition, ownership itself may create potential liability as to the additional/purportedly non-acting owner as well. Ownership has its obligations and responsibilities that extend past the deed.

10. Furthermore, complete relief cannot be accorded to Plaintiffs if Karcher is dismissed from this action. In addition to money damages, Plaintiffs seek declaratory and injunctive relief to abate and restrain the nuisances committed at the Premises (see, [NYSCEF#2](#) at 11-12). If Plaintiffs were to obtain injunctive relief only against Calvagno, such relief would not bind the co-owner of the premises and would therefore fail to fully abate the nuisance conditions alleged to exist at the property. Karcher’s dismissal would therefore preclude complete relief as his absence will impair or impede Plaintiffs’ abilities to restrain or abate the nuisance at the Premises. As a result, Karcher is a necessary and indispensable party to this action that may not be dismissed.

POINT II

DEFENDANT’S MOTION FOR SUMMARY JUDGMENT IS UNTIMELY AND MUST BE DENIED PURSUANT TO CPLR §3212(a)

11. Defendant’s motion must be denied as untimely pursuant to CPLR §3212(a).

12. CPLR §3212(a) provides that a motion for summary judgment shall be made no later than one hundred twenty (120) days after the filing of the note of issue, except with leave of court on good cause shown.

13. The Court of Appeals has made clear that the statutory deadline is to be strictly enforced. A party seeking summary judgment after the expiration of the 120-day period must demonstrate “good cause” for the delay. Mere law office failure, the strength of the motion, or the absence of prejudice to the opposing party does not constitute good cause.

14. Here, the Note of Issue in this action was filed on July 16, 2022 and marked as received on January 20, 2024.

15. Defendant Patrick J. Karcher filed the instant motion for summary judgment on February 27, 2026.

16. Accordingly, Defendant’s motion was made well beyond the 120-day deadline set forth in CPLR §3212(a).

17. Defendant has not demonstrated, nor even attempted to demonstrate, good cause for filing this motion, years after the statutory deadline expired.

18. The failure to provide a satisfactory explanation for the untimely filing requires denial of the motion regardless of the merits of the underlying arguments.

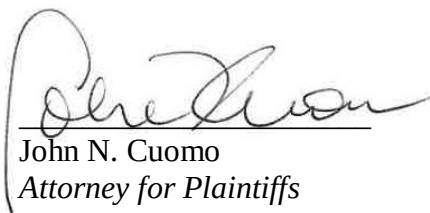
19. The Court of Appeals has made clear that the 120-day deadline must be strictly enforced and that courts lack discretion to entertain untimely motions absent a showing of good cause. *See, Brill v. City of New York*, 2 NY3d 648, 651 (2004).

20. Because Defendant has failed to establish good cause for the late filing of this motion, the Court must deny the motion for summary judgment as untimely pursuant to CPLR §3212(a).

21. For this additional reason alone, Defendant Patrick J. Karcher's motion for summary judgment should be denied in its entirety.

22. For all the foregoing reasons, including the untimeliness of Defendant's motion pursuant to CPLR §3212(a), Defendant Patrick J. Karcher's motion for summary judgment should be denied in its entirety.

Dated: Commack, New York
March 9, 2026



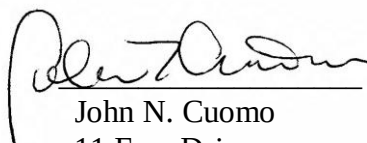
John N. Cuomo
Attorney for Plaintiffs
Diane and Thomas DeSousa
11 Fern Drive
Commack, New York 11725
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CERTIFICATION PURSUANT TO UNIFORM RULES 202.8-b

John N. Cuomo, an attorney duly admitted to practice law before the Courts of the State of New York, certifies that foregoing document was completed using a word processing system and that I have relied on that system's word count in preparing this certification and word count: The total words, excluding those permitted to be excluded (caption, signature block) is 1097.

Dated: Commack, New York
March 9, 2026

Yours, etc.,

A handwritten signature in black ink, appearing to read "John N. Cuomo", written over a horizontal line.

John N. Cuomo
11 Fern Drive
Commack, NY 11725
631-403-0515